court of inquiry, or investigation and by an order from the convening authority or appointing authority, subscribed by him and directing the disbursing officer to pay to the witness the fees and mileage supported by the public voucher.

2. Paragraph (k) (2) of § 719.5 is revised to read as follows:

(k) *Rates for civilian witnesses prescribed by law.* * * *

(2) *Civilian witnesses in Government employ.* A civilian in the employ of the Government, when summoned as a witness, shall be paid (i) his necessary expenses incident to travel by common carrier, or, if travel is made by privately owned automobile, mileage at the rate of 10 cents per mile, and (ii) a per diem allowance at the rate of $12 in lieu of subsistence within the continental United States, and at the maximum rates prescribed by the Bureau of the Budget pursuant to the Travel Expense Act of 1949, as amended (5 U. S. C. 836) outside the continental United States. Such per diem allowances shall be paid in accordance with the provisions of the Standardized Government Travel Regulations (see Naval Civilian Personnel Instructions 240.11). If the tribunal is in session at the place where the civilian witness in the employ of the Government is stationed, he shall receive no allowance.

3. Section 719.7 is revised to read as follows:

§ 719.7 *Attendance of witnesses before investigations.* An investigation ordered pursuant to Chapter II, III, IV or V of the 1955 Naval Supplement to the Manual for Courts-Martial, United States, 1951, with the exception of when it is acting as a board for redress of injuries to property under Article 139 of the Uniform Code of Military Justice (50 U. S. C. 735), has no statutory power to summon civilian witnesses. Testimony of any witness may, however, be requested, and the investigation is not confined to any federal reservation in its quest for evidence by witnesses.

(R. S. 1547; 34 U. S. C. 591)

By direction of the Secretary of the Navy.

[SEAL] R. LIBBY,
Captain, U. S. Navy, Acting, Judge Advocate General of the Navy.

JULY 24, 1956.

[F. R. Doc. 56-6155; Filed, July 30, 1956; 8:51 a. m.]

TITLE 33—NAVIGATION AND NAVIGABLE WATERS

Chapter II—Corps of Engineers, Department of the Army

PART 203—BRIDGE REGULATIONS

PART 207—NAVIGATION REGULATIONS

LEWIS RIVER, WASH; HAMPTON ROADS AND WILLOUGHBY BAY, VA.

1. Pursuant to the provisions of section 5 of the River and Harbor Act of August 18, 1894 (28 Stat. 362; 33 U. S. C. 499), § 203.765 (b) (1) prescribing special regulations governing the operation of the Northern Pacific Railway Company bridge across Lewis River, Washington, is hereby amended to provide for operation of the draw on advance notice from May 25 to July 20, both dates inclusive, and for the closure of the bridge during the remainder of each year, as follows:

§ 203.765 *Cowlitz and Lewis Rivers, Wash.; bridges.* * * *

(b) *Special regulations*—(1) *Northern Pacific Railway Company bridge across Lewis River.* (i) The owner of or agency controlling the bridge will not be required to open the draw of the bridge for the passage of vessels from January 1 to May 24, inclusive, and from July 21 to December 31, inclusive, of any year.

(ii) Whenever a vessel unable to pass under the closed bridge desires to pass through the draw from May 25 to July 20, both dates inclusive, at least 6 hours' advance notice of the time the opening is required shall be given to the authorized representative of the owner of or agency controlling the bridge.

(iii) Upon receipt of such notice, the authorized representative of the owner of or agency controlling the bridge, in compliance therewith, shall arrange for the prompt opening of the draw at the time specified in the notice of the passage of the vessel.

(iv) The owner of or agency controlling the bridge shall keep conspicuously posted on both the upstream and downstream sides of the bridge, in a manner that it can be easily read at any time, a copy of the regulations of this section, together with a notice stating exactly how the authorized representative may be reached by telephone or otherwise.

* * * * *

[Regs., 19 July 1956, 823.01 (Lewis River, Wash.)—ENGWO] (Sec. 5, 28 Stat. 362; 33 U. S. C. 499)

2. Pursuant to the provisions of section 7 of the River and Harbor Act of August 8, 1917 (40 Stat. 266; 33 U. S. C. 1), § 207.156 establishing and governing the use and navigation of the waters of Hampton Roads and Willoughy Bay, comprising a seaplane restricted area is hereby amended to provide for a revision of the boundaries of the restricted area and to establish a prohibited area within the restricted area, as follows:

§ 207.156 *Hampton Roads and Willoughby Bay, Norfolk, Va.; seaplane restricted and prohibited areas*—(a) *The areas*—(1) *The restricted area.* Beginning on the shore of Willoughby Bay at latitude 36°57'22", longitude 76°18'02.7"; thence to latitude 36°57'29", longitude 76°19'01"; thence to latitude 36°58'41.5", longitude 76°18'42"; thence to latitude 36°58'37.5", longitude 76°18'16"; thence to latitude 36°58'01", longitude 76°18'23"; thence to latitude 36°57'48", longitude 76°18'07.5"; thence to latitude 36°57'45.5", longitude 76°17'58.5"; thence to latitude 36°57'35", longitude 76°17'08"; thence to latitude 36°57'43", longitude 76°16'54"; thence to latitude 36°57'42", longitude 76°16'21.5", and thence conforming to the shore line to the point of beginning.

(2) *The prohibited area.* Beginning on the shore of Willoughby Bay at latitude 36°57'22", longitude 76°18'02.7"; thence to latitude 36°57'47.7", longitude 76°18'57"; thence to latitude 36°57'57.3", longitude 76°18'54"; thence to latitude 36°57'22.7", longitude 76°16'23.8"; thence conforming to the shore line to the point of beginning.

(b) *The regulations.* (1) No vessel shall enter or remain in the prohibited area, except on prior permission granted by the Commanding Officer, Naval Air Station, Norfolk, Virginia.

(2) Vessels shall not moor or anchor within the restricted area. All vessels moving in the restricted area shall immediately proceed from the area on the approach of seaplanes or when warned by a patrol boat or any other means of warning which may be employed.

(3) Fishing, oystering, clamming, crabbing, and other aquatic activities are prohibited within the areas.

(4) The regulations in this section shall be enforced by the Commandant, Fifth Naval District, Norfolk, Virginia, and such agencies as he may designate.

[Regs., 12 July 1956, 800.2121 (Willoughby Bay, Va.)—ENGWO] (Sec. 7, 40 Stat. 266; 33 U. S. C. 1)

[SEAL] JOHN A. KLEIN,
Major General, U. S. Army, The Adjutant General.

[F. R. Doc. 56-6129; Filed, July 30, 1956; 8:46 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1317]

[1146337]

ALASKA

RESERVING PUBLIC LANDS FOR USE OF FISH AND WILDLIFE SERVICE AS KODIAK ADMINISTRATIVE SITE

By virtue of the authority vested in the President by section 2380 of the Revised Statutes (43 U. S. C. 711) and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Subject to valid existing rights, the following-described public land in Alaska, which is part of the withdrawal on Kodiak Island for townsite purposes made by Executive Order No. 8442 of June 12, 1940, is hereby reserved for use of the Fish and Wildlife Service, Department of the Interior, as the Kodiak Administrative Site:

That part of U. S. Survey 1707 described as follows:

Beginning at Corner No. 1 of U. S. Survey 1707, in the Town of Kodiak, latitude 57°47'23" N., longitude 152°23'48" W., thence by metes and bounds:

N. 35° 47' W., 115.5 feet to corner No. 2 U. S. Survey 1707;
S. 50° 28' W., 89.0 feet;

S. 35° 47' E., 109.7 feet to a point on the southeast boundary of U. S. Survey 1707; N. 54° 13' E., 89.2 feet along southeast boundary to point of beginning.

The area described contains 0.23 acre.

Executive Order No. 8442 of June 12, 1940, which reserved the above-described tract, together with other lands, for townsite purposes, is hereby modified to the extent necessary to permit the reservation made by section 1 of this order to become effective.

WESLEY A. D'EWART,
Assistant Secretary of the Interior.

JULY 25, 1956.

[F. R. Doc. 56-6131; Filed, July 30, 1956; 8:46 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF HEALTH, EDUCATION, AND WELFARE

Food and Drug Administration

[21 CFR Part 120]

TOLERANCES AND EXEMPTIONS FROM TOLERANCES FOR PESTICIDE CHEMICALS IN OR ON RAW AGRICULTURAL COMMODITIES

NOTICE OF FILING OF PETITION FOR ESTABLISHMENT OF TOLERANCES FOR RESIDUES OF MALATHION

Pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (sec. 408 (d) (1), 68 Stat. 512; 21 U. S. C. 346a (d) (1)), the following notice is issued:

A petition has been filed by American Cyanamid Company, 30 Rockefeller Plaza, New York 20, New York, proposing the establishment of a tolerance of 8 parts per million for residues of malathion in or on the following raw agricultural commodities: Asparagus, barley (grain form), blackberries, boysenberries, carrots, collards, corn (grain form and forage), cottonseed, currants, dandelions, dewberries, endive (escarole), figs, garlic, gooseberries, guavas, horseradish, kohlrabi, leeks, loganberries, mushrooms, nectarines, oats, parsley, parsnips, pecans, peppermint, pumpkins, quinces, radishes, raspberries, rice, rye, salsify (including tops), shallots, spearmint, Swiss chard, water cress, walnuts, wheat (grain form); a tolerance of 4 parts per million in or on the following raw agricultural commodities: Meat (of cattle, swine, chickens, ducks, geese, and turkeys) and chicken eggs; and a tolerance of 0.4 part per million in milk.

The analytical method proposed in the petition for determining residues of malathion in fruits and vegetables is the method published in the Journal of Agricultural and Food Chemistry, Vol. II, No. 11, pages 570–573 (1954).

Methods proposed for determining malathion in eggs, milk, and meat are modifications of this procedure, the primary modification with respect to each product being in the preparation of the sample for the extraction.

Dated: July 26, 1956.

[SEAL] GEO. P. LARRICK,
Commissioner of Food and Drugs.

[F. R. Doc. 56-6143; Filed, July 30, 1956; 8:49 a. m.]

NOTICES

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

MISSISSIPPI

NOTICE OF PROPOSED WITHDRAWAL AND RESERVATION OF LAND

JULY 25, 1956.

The Office of the Chief of Engineers, Department of the Army, has filed application, BLM 042717, for the withdrawal of the land described below, from all form of appropriation, including the mining and mineral leasing laws, subject to valid existing rights.

The applicant desires the land for use in connection with Camp Shelby.

For a period of 30 days from the date of publication of this notice, persons having cause may present their objections in writing to the undersigned official of the Eastern States Land Office, Bureau of Land Management, Department of the Interior, Washington 25, D. C.

If circumstances warrant it, a public hearing will be held at a convenient time and place, which will be announced.

The determination of the Secretary on the application will be published in the FEDERAL REGISTER. A separate notice will be sent to each interested party of record.

The land involved in the application is:

FORREST COUNTY, MISSISSIPPI

T. 3 N., R. 12 W., St. Stephens Meridian,
Sec. 19, SW¼SW¼.
Containing 34.76 acres.

H. K. SCHOLL,
Acting Manager.

[F. R. Doc. 56-6132; Filed, July 30, 1956; 8:47 a. m.]

WYOMING

STOCK DRIVEWAY WITHDRAWAL NO. 21, WYOMING NO. 5, ENLARGED

By virtue of the authority contained in section 10 of the act of December 29, 1916 (39 Stat. 865), as amended by the act of January 29, 1929 (45 Stat. 1144; 43 U. S. C. 300), and in section 7 of the act of June 28, 1934 (48 Stat. 1272), as amended by the act of June 26, 1936 (49 Stat. 1976; 43 U. S. C. 315f), and pursuant to the authority delegated by the Director, Bureau of Land Management, by Section 2.5, Order No. 541 of April 21, 1954 (19 F. R. 2473), it is ordered as follows:

The following described public lands in the State of Wyoming are hereby classified as necessary and suitable for stock driveway purposes, and, excepting any mineral deposits therein, are withdrawn from all disposal under the public land laws and reserved, subject to valid existing rights, for the use of the general public, the reservation to be known as Stock Driveway Withdrawal No. 21, Wyoming No. 5, Enlarged:

SIXTH PRINCIPAL MERIDIAN, WYOMING

T. 48 N., R. 89 W.,
Sec. 1: S½.
T. 49 N., R. 87 W.,
Sec. 5: Lot 8;
Sec. 6: Lots 8 and 9;
Sec. 7: Lot 5;
Sec. 8: Lots 2 and 3;
Tract 57: Lots A–E–F–G–H–I–J–N–O–P.

The area described aggregated 925.62 acres.

Any mineral deposits in the lands shall be subject to location and entry only in the manner prescribed by the Secretary of the Interior in accordance with the provisions of the aforesaid act of January 29, 1929, and existing regulations.

Notice for Filing Objections to the Following Entitled Order Published Simultaneously Herewith; Stock Driveway Withdrawal No. 21, Wyoming No. 5, Enlarged

For a period of 30 days from the date of publication of the above entitled order, persons having cause to object to the terms thereof may file their objections in duplicate in the office of the State Supervisor, Room 305, Federal Office Building, Cheyenne, Wyoming. In the case any objection is filed and the nature is such to warrant it, a public hearing will be held at a convenient time and place, which will be announced, where opponents to the order may state their views and where proponents of the order can explain its purpose, intent, and extent. Should any objection be filed, whether or not a hearing is held, notice of the determination as to whether the order should be rescinded, modified or let stand will be given to all interested parties of record and the general public.

LOWELL M. PUCKETT,
State Supervisor.

[F. R. Doc. 56-6133; Filed, July 30, 1956; 8:47 a. m.]

[W-040085]

WYOMING

STOCK DRIVEWAY WITHDRAWAL NO. 128, WYOMING NO. 13, REDUCED

By virtue of the authority contained in section 10 of the act of December 29, 1916 (39 Stat. 865), as amended by the act of